



DELANEY ROBERTS

SPECIALIST FAMILY LAWYERS

Our Ref: ALR:ALR:13629
Your Ref: Samantha Miller

14 December 2023

Clarity Lawyers
T&G Building
Level 4, Suite 4A 45 Hunter Street
NEWCASTLE NSW 2300

By Email Only: samantha@claritylawyers.com.au

Dear Colleagues

**Re: Cooke & Cooke
Property and Parenting**

We refer to the above matter.

Proposed parenting arrangements

Our client wishes to make parenting arrangements for the children to spend time with your client from this weekend and throughout the Christmas break and commencing into Term 1 2024 as follows:

1. From 3:00pm on 17 December to 3:00pm on 24 December,
2. From 3:00pm on 31 December to 3:00pm on 7 January,
3. From 3:00pm on 14 January to 3:00pm on 21 January,
4. On 27 January, Joshua's Birthday, from 1:00pm to 5:00pm,
5. From 3:00pm on 28 January to 3:00pm on 31 January,
6. Changeover to occur at the Shell Service Station on Glebe Road, Merewether.
7. The parent who is caring for the children is to facilitate a phone call with the children each day at 5:00pm.

We are instructed that your client has acted irrationally and impulsively around the time of separation including withholding Christian's Ritalin from our client after she departed the former matrimonial home. Further, he has brought a Recovery application in Court where this was clearly not necessary and a Mediation would have been more conducive to the

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parents resolving their differences in relation to the parenting arrangement without involving the children in Court proceedings.

In light of your client's behaviour, the commencement of our client's above time proposal is conditional upon our receiving written confirmation of your client's undertaking to return the children at the agreed times in order that further distress for the children can be avoided.

Other parenting issues

We are instructed that your client has told the children that he cannot attend their regular sporting activities without our client's permission however our client has never made such statement to the children and has no issue with your client attending such events.

We are instructed that your client is a Canadian citizen. Would you please confirm that your client does not intend to leave Australia until resolution of the Court proceedings?

Spousal maintenance

Our client proposes that she pay to your client spousal maintenance in the sum of \$5,000 per month provided that he provides documentary evidence of his attempts to secure paid employment at least once a month from the date of the first payment.

We are instructed that on 20 November 2023, your client removed approximately \$8,000 from the parties' joint accounts. Our client had allowed \$5,000 of this amount for your client's use however the remaining \$3,000 was for joint expenses for which automatic transfers were set up to debit that week. Our client changed her own direct debits and asked your client to change his, however, he failed to do so which resulted in charges and overdrawn fees of approximately \$200.00 that our client has paid.

As such, our client's first payment to your client of the \$5,000 in spousal maintenance will be reduced by the \$3,000 withdrawn by him in addition to the \$200 in fees and charges.

Inter-parental communications

We are instructed that your client has had a history of immature and inflammatory behaviour and communications towards our client, particularly since separation. This has included:

1. Removing boxes of our client's clothing and belongings while she was packing to leave the former matrimonial home so that she had no clothing other than activewear to attend her employment as a Cardiologist,
2. Crying loudly and openly in front of the children regarding the separation,
3. Withholding Christian's Ritalin, as set about above, and
4. While the parties were separated under the one roof and after your client had withdrawn the sum of \$8,000 from the parties' joint account, sending our client an email requesting that our client reimburse him for take away that he had purchased for the children's dinner.

Whilst our client wishes to maintain a shared parenting arrangement in the best interests of the children, such approach is made very difficult for her when your client persists with such behaviour. Would you kindly assist your client to understand the importance of maintaining appropriate communications with our client and of prioritising the children's interests over his own.

We look forward to hearing from you in respect of the above proposals.

Yours faithfully

Delaney Roberts Family Lawyers



Anna Roberts

Director, Solicitor & Family Dispute Resolution Practitioner

BComn LLB GradDipLegPrac

M.AppLaw (Family Law) GradDip (FDRP)

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phone: 02 4952 3901

Our Ref: SJM:2023:520
Your Ref: ALR:ALR:13629

15 December 2023

Delaney Roberts
274 Brunker Road
ADAMSTOWN NSW 2289

Dear Colleagues,

Re: NCC3896/2023Cooke and Cooke Family Law Matter

Thank you for your letter dated 14 December 2023, in responding we have adopted the same headings and numbering.

Proposed parenting arrangements

Our client thanks your client for her proposal regarding the upcoming school holiday time. We ask that the following amendments be considered:

- That the time at point 1 be extended until 10am on 25 December 2023. Our client seeks time on Christmas day as he has spent considerably less time with the children since your client removed them from the home coupled with the fact that his sister is visiting from Canada.
- That changeover as per point 6 take effect by your client delivering and collecting the children from the home. Our client would offer to deliver the children back to your client however to date she has refused to reveal her address.

Our client denies the allegations regarding his behaviour. In particular, he did not deliberately withhold Christian's Ritalin. There is/was no agreement about your client taking the children with her when she left the home and he had no idea when they were returning and had assumed that this would be before the supply your client took with her ran out. Our client had visited the pharmacy on the morning your client left, the prescription could not be filled that day and was collected the following day. We understand that the medication has since been provided to your client.

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To blame our client for the consequences of your client acting without any regard to our client's position with respect to the children's residence is unjust. Our client took the appropriate course of action by putting forward a proposal, suggesting mediation and awaiting your client's response. Your client did not agree with this proposal and rather than arrange an urgent mediation she acted unilaterally by removing the children from their home and the parent with whom they spend the majority of their time. A recovery application could not have been unexpected in these circumstances and we're sure you advised your client of that likely outcome.

Regardless of recent events we still believe that mediation could be effective, particularly if it were able to occur prior to the listing on 29 January. We therefore request that your client select one of the following mediators and dates:

1. Mr Alan Wright

Available dates

10, 12, 23 and 25 January

2. Mr Greg Levick

Available dates

22, 23, 24 January

Other parenting issues

We confirm that our client does not intend to leave Australia.

Spousal maintenance

The amount proposed by way of spousal maintenance is accepted though to make it contingent upon the provision of monthly evidence of job attempts is not. This is overstepping. We confirm that our client has every intention of obtaining paid employment and getting himself back on his feet financially as quickly as possible.

The calculations for the following month are accepted and we therefore confirm that he expects the sum of \$1,800 to be paid on 17 December and \$5,000 to be paid on the 17th of every month thereafter.

Given that the combined mortgage repayments exceed \$5,000 per month we assume that your client will continue to meet the parties obligations in this regard. We confirm that our client agrees to meet all utility payments.

Inter-parental communications

We are unsure why this section is included as it does nothing to progress the matter and is merely inflammatory. We have of course spoken to our client about establishing and maintaining a good ongoing co-parenting relationship. We feel obliged to point out that the unilateral actions, both in the property and the parenting matter, and complete disregard for our client's position by your client have not assisted.

Yours faithfully,



Samantha Miller

Director and Principal Solicitor

Clarity Lawyers

BSc LLB Dip. Leg. Prac

LLM (Applied Law) Majoring in Family Law

email: samantha@claritylawyers.com.au

***Our office will be closed from 12noon on Friday, 22
December 2023 until 9am on Wednesday, 3 January
2024.***

***We wish you a Merry Christmas and a Happy New
Year!***



Our Ref: ALR:ALR:13629
Your Ref: Samantha Miller

18 December 2023

Clarity Lawyers
T&G Building
Level 4, Suite 4A 45 Hunter Street
NEWCASTLE NSW 2300

By Email Only: samantha@claritylawyers.com.au

Dear Colleagues

**Re: Cooke & Cooke
Property & Parenting**

We refer to your correspondence dated 15 December and 18 December 2023.

We note that your client has not provided the undertaking as requested that he return the children at the proposed times. As set out in our letter dated 14 December 2023, in the absence of such undertaking, our client does not agree that the children spend time with your client.

We are instructed that your client has acted impulsively and with little regard to the children's interests on several occasions since separation, including to repeatedly cry in their presence. Our client is significantly concerned that your client will act impulsively in relation to the parenting arrangements in pursuit of his own interests by retaining the children where he does not currently appear to have sufficient capacity to safely care for the children for extended periods. We reiterate that our client requires your written confirmation that your client undertakes to return the children at the times agreed prior to the commencement of time.

In relation to the matters set out in your correspondence of 15 December 2023:

1. Our client has no objection to the children spending time with your client until 10:00am on 25 December, subject to the provision of the above undertaking.
2. Our client has experienced privacy breaches and harassment from your client on numerous occasions and therefore does not intend to disclose her current address. She does not agree to changeover occurring in a location other than a neutral, visible, public place and her proposal of the Shell Service Station on Glebe Road stands.

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3. Our client maintains her position that your client knowingly withheld Christian's Ritalin and shall provide further details in her Affidavit.
4. Whether or not the children spend the majority of their time with your client is debatable, however, it is clear that our client is the children's primary attachment figure.
5. We are of the view that our client acted reasonably by vacating the former matrimonial home with the children after enduring years of harassment perpetrated by your client. Our client agreed to your client's proposal of mediation however your client immediately filed Court proceedings when his demands were not met.
6. Whilst a recovery application was not unexpected (and had already been foreshadowed in your client's communications with our client), it was unnecessary and has now brought this family into the unfortunate realm of parenting litigation where the more appropriate course would have been to first attempt mediation, as required by the pre-action procedure.
7. Our client and the writer are available for Mediation with Mr Alan Wright on 10 or 12 January 2024.
8. In relation to spousal maintenance, we do not agree that our client's request for evidence of your client's attempts to secure employment is "*overstepping*". We note that the Court will require evidence of your client's earning capacity and, given that he is fit and healthy for work, this would likely be demonstrated by his attempts to secure employment. If your client continues to dispute her request, our client is content to await a court determination in relation to spousal maintenance.
9. We consider that corresponding in relation to inter-parental communications is important. Each party has their view and should be entitled to communicate same without it being dismissed as "*merely inflammatory*".

Yours faithfully

Delaney Roberts Family Lawyers



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